

Visual Changes demurs on these causes of action because Visual Changes alleges that Mr. Smith could have filed his own insurance claims separately and that plaintiff admits that Ms. Smith had exclusive possession of the Jacquelyn property. (Visual Changes Moving Papers, pps. 16:8-17:4.)

Here, Mr. Smith alleges that both defendants interfered with Plaintiff's use and enjoyment of the Jacquelyn Property by failing to secure and protect it from damage, vandalism, and/or destruction. (SAC, ¶¶ 112, 117, and 122.) Plaintiff alleges that the invasion by defendants of Plaintiff's use and enjoyment of the Jacquelyn Property caused substantial damages, constituted unreasonable interference, and was done intentionally and without Plaintiff's knowledge or consent. (SAC, ¶¶ 113-115, 118-120, and 123-125.)

Furthermore, the basis that Visual Changes demurs is either on grounds of mitigation, or the assertion, without caselaw, that Mr. Smith is precluded from filing a nuisance claim on property he owned where Ms. Smith had exclusive possession. Mitigation is not appropriate to test the sufficiency of a pleading in a demurrer. Nor is a legal assertion unsupported by caselaw.

Accordingly, the demurrers with respect to the thirteenth through fifteenth causes of action are overruled.

Seventeenth Cause of Action

Ms. Smith provides no points and authorities to challenge the seventeenth cause for unjust enrichment.

Accordingly, the demurrer with respect to the seventeenth cause of action is overruled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 7-22-26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Cortez v. Volkswagen Group of America, Inc. et al.***
Superior Court Case No. 24CECG04142

Hearing Date: July 23, 2026 (Dept. 502)

Motion: By Plaintiff Luis Cortez to Compel Deposition of Person Most Knowledgeable

Tentative Ruling:

To grant and order the deposition of the person most knowledgeable of defendant Volkswagen Group of America, Inc. to be conducted on or before July 27, 2026.

Explanation:

Plaintiff Luis Cortez ("Plaintiff") filed the instant motion to compel the deposition of the person most knowledgeable ("PMK") for defendant Volkswagen Group of America, Inc. ("Defendant"). On this occasion only and due to the impacted calendar of the court, the court retroactively finds that under the circumstances, a Pretrial Discovery Conference pursuant to Fresno Superior Court Local Rule 2.1.17 would not have been beneficial, and proceeds.

Plaintiff submits, and the court agrees, that the deposition of Defendant's PMK is relevant and good cause exists to compel the deposition to go forward. Defendant in opposition proffers that Plaintiff's counsel "maintains a significant number of cases against [Defendant] and has taken over a thousand depositions of [Defendant's] PMK" and that this is indicative that Defendant is cooperative with the requests. What occurs outside of the four corners of this case is irrelevant to this deposition. What is relevant is that Defendant's opposition submits that the motion is moot due to the parties' agreement to conduct the deposition on July 16, 2026.

Almost on prediction that the deposition would not occur or would suffer delay, the opposition continues that Defendant requests the court conduct a discovery conference if the PMK deposition was not completed on July 16, 2026. Plaintiff represents on reply that counsel for Plaintiff attended the deposition as scheduled, and Defendant, and the deponent, failed to appear. (Hozven Decl., ¶ 6.) Following further meet and confer efforts, the parties appear to have set a future date of July 22, 2026, 10:00 a.m. for the deposition. Accordingly, the motion is granted to avoid further potential delay.¹

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

¹ The court will entertain any sanctions request should the deposition unreasonably fail to occur as scheduled. All issues regarding production are reserved due to the absence of the renewed notice of taking of deposition in evidence.

